

Franciscus Dylan Rosario,
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Plaintiff, In Pro Per

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

Franciscus Dylan Rosario,
PLAINTIFF,

v.

Subhi Abdelhalim;
CSAA Insurance Exchange;
and DOES 1 through 50, inclusive;

DEFENDANTS

Case No.: CGC-25-631801

**REQUEST FOR JUDICIAL NOTICE
(PRESERVATION OF LAW);
MEMORANDUM (LIMITED)**

(Evid. Code, §§ 451–453)

REQUEST

Plaintiff requests that the Court take judicial notice of the following **California statutory and regulatory texts** and **published opinions**, under Evidence Code sections **451, 452, and 453**, for **preservation of a stable appellate record**, for **accuracy of legal standards**, and to **assist the Court** in locating governing law referenced in plaintiff's **First Amended Complaint** and in the instant motion for reconsideration.

No request is made for the truth of disputed factual matters outside the black-letter content of the sources listed.

MEMORANDUM (LIMITED)

Standard. Evidence Code section **451** mandates judicial notice of California statutory law and decisional law. Section **452** authorizes notice of additional categories where relevant. Section **453** governs the manner of submission.

Purpose. Each item below states **one neutral sentence** describing what the source contains, without arguing the merits of this case.

TABLE OF AUTHORITIES (LIMITED SUBSET FOR THIS RFJN)

Cases

Kulchar v. Kulchar, (1969) 1 Cal.3d 467

In re Marriage of Modnick, (1983) 33 Cal.3d 897

Stevenot v. Stevenot, (1984) 154 Cal.App.3d 1051

Estate of Beard, (1999) 71 Cal.App.4th 753

Aldrich v. San Fernando Valley Lumber Co., (1985) 170 Cal.App.3d 725

In re Marriage of Baltins, (1989) 212 Cal.App.3d 66

Cedars-Sinai Medical Center v. Superior Court, (1998) 18 Cal.4th 1

Lucido v. Superior Court, (1990) 51 Cal.3d 335

Los Angeles Airways, Inc. v. Hughes Tool Co., (1979) 95 Cal.App.3d 1

Silberg v. Anderson, (1990) 50 Cal.3d 205

Rusheen v. Cohen, (2006) 37 Cal.4th 1048

Rubenstein v. Rubenstein, (2000) 81 Cal.App.4th 1131

Park v. Board of Trustees of the California State University, (2017) 2 Cal.5th 1057

Baral v. Schnitt, (2016) 1 Cal.5th 376

Computer Xpress, Inc. v. Jackson, (2001) 93 Cal.App.4th 993

Bonni v. St. Joseph Health System, (2021) 11 Cal.5th 995

Simpson Strong-Tie Co. v. Gore, (2010) 49 Cal.4th 12

Moradi-Shalal v. Fireman's Fund Ins. Cos., (1988) 46 Cal.3d 287

1 *Gulf Ins. Co. v. Berger, Kahn, Shafon, Moss, Figler, Simon & Gladstone*, (2000) 79 Cal.App.4th
2 114

3 *Le Francois v. Goel*, (2005) 35 Cal.4th 1094

4 *Standard Microsystems Corp. v. Winbond Electronics Corp.*, (2009) 179 Cal.App.4th 868

5 *Reedy v. Bussell*, (2007) 148 Cal.App.4th 1272

6 *Kolani v. Gluska*, (1998) 64 Cal.App.4th 402

7 *Ross v. Creel Printing & Publishing Co.*, (2002) 100 Cal.App.4th 736

8 *Jay v. Mahaffey*, (2013) 218 Cal.App.4th 1522

9 *Nguyen-Lam v. Cao*, (2009) 171 Cal.App.4th 858

10 *Caldwell v. Taylor*, (1933) 218 Cal. 471

11 *Pico v. Cohn*, (1891) 91 Cal. 129

12 **Statutes and rules**

13 Code Civ. Proc., § 187

14 Code Civ. Proc., § 473

15 Code Civ. Proc., § 1008(a)

16 Code Civ. Proc., § 425.16

17 Code Civ. Proc., § 425.17

18 Evid. Code, §§ 451, 452, 453, 459

19 Civ. Code, § 47, subdiv. (b)

20 Civ. Code, §§ 2330, 2338

21 Evid. Code, § 1222

22 Ins. Code, § 790.02

23 Ins. Code, § 790.03, subdiv. (h)

24 Title 10 CCR, §§ 2695.1 et seq.

25 Cal. Rules of Court, rule 3.1113

26 Cal. Rules of Court, rule 3.1300(d)

27 Cal. Rules of Court, rule 3.1324

ITEMS FOR JUDICIAL NOTICE

Item 1. Code of Civil Procedure, section 187 (official text). The section states that when jurisdiction is conferred on a court, the means necessary to carry it into effect are also given, and suitable process may be adopted consistent with the code when procedure is not specifically prescribed.

Item 2. Code of Civil Procedure, section 473 (official text), including subdivisions relevant to relief from judgment or orders on the grounds stated in the statute.

Item 3. Code of Civil Procedure, section 1008, subdivision (a) (official text). The subdivision authorizes reconsideration on new or different facts, circumstances, or law.

Item 4. Code of Civil Procedure, section 425.16 (official text), including subdivisions (b), (e), and (c) as written.

Item 5. Code of Civil Procedure, section 425.17 (official text), including subdivision (c) as written.

Item 6. Evidence Code, sections 451, 452, 453, and 459 (official text). These provisions govern judicial notice and related procedures.

Item 7. Civil Code, section 47, subdivision (b) (official text). The subdivision defines privileged publications or broadcasts in certain litigation-related contexts using the statute's terms.

Item 8. Civil Code, sections 2330 and 2338 (official text). The sections state rules regarding principals and agents.

Item 9. Evidence Code, section 1222 (official text). The section states conditions under which evidence of an authorized statement may be admissible for certain purposes, as written.

Item 10. Insurance Code, section 790.02 (official text). The section states legislative findings and purposes related to unfair methods of competition and unfair or deceptive acts in the business of insurance.

Item 11. Insurance Code, section 790.03, subdivision (h) (official text), including enumerated subparagraphs as published.

Item 12. California Code of Regulations, title 10, sections 2695.1 et seq. (Fair Claims Settlement Practices Regulations; official text), including **2695.4** and **2695.7** as published.

Item 13. Kulchar v. Kulchar (1969) 1 Cal.3d 467. The Supreme Court discusses extrinsic fraud, including circumstances where a party is fraudulently prevented from presenting a claim or defense.

Item 14. In re Marriage of Modnick (1983) 33 Cal.3d 897. The Supreme Court discusses extrinsic fraud and post-judgment discovery of deliberately concealed material in the dissolution context.

Item 15. Stevenot v. Stevenot (1984) 154 Cal.App.3d 1051. The Court of Appeal discusses extrinsic fraud and concealed evidence in relation to set-aside remedies.

Item 16. Estate of Beard (1999) 71 Cal.App.4th 753. The Court of Appeal discusses extrinsic fraud and post-trial discovery of concealed matters in the probate set-aside context.

Item 17. Aldrich v. San Fernando Valley Lumber Co. (1985) 170 Cal.App.3d 725. The Court of Appeal discusses extrinsic fraud involving false statements to the court affecting the adversary process.

Item 18. In re Marriage of Baltins (1989) 212 Cal.App.3d 66. The Court of Appeal discusses extrinsic fraud and distinctions between intrinsic and extrinsic fraud.

Item 19. Cedars-Sinai Medical Center v. Superior Court (1998) 18 Cal.4th 1. The Supreme Court discusses extrinsic fraud and deprivation of an opportunity to present issues at trial.

Item 20. Lucido v. Superior Court (1990) 51 Cal.3d 335. The Supreme Court discusses collateral estoppel requirements, including that an issue have been actually litigated and necessarily decided.

Item 21. Los Angeles Airways, Inc. v. Hughes Tool Co. (1979) 95 Cal.App.3d 1. The Court of Appeal discusses equitable considerations relating to motions to set aside a judgment, including finality and fraud-related concerns.

Item 22. Silberg v. Anderson (1990) 50 Cal.3d 205. The Supreme Court discusses Civil Code section 47, subdivision (b), and the litigation privilege.

Item 23. Rusheen v. Cohen (2006) 37 Cal.4th 1048. The Supreme Court discusses the litigation privilege and its application to communicative and related conduct.

Item 24. Rubenstein v. Rubenstein (2000) 81 Cal.App.4th 1131. The Court of Appeal dis-

cusses Civil Code section 47, subdivision (b), in relation to equitable remedies affecting a judgment.

Item 25. Park v. Board of Trustees of the California State University (2017) 2 Cal.5th 1057. The Supreme Court interprets Code of Civil Procedure section 425.16 and discusses the “wrong complained of” test.

Item 26. Baral v. Schnitt (2016) 1 Cal.5th 376. The Supreme Court discusses the two-step special motion to strike framework, severance, and the plaintiff’s second-step showing.

Item 27. Computer Xpress, Inc. v. Jackson (2001) 93 Cal.App.4th 993. The Court of Appeal discusses limitations on weighing evidence at the second step of the anti-SLAPP framework.

Item 28. Bonni v. St. Joseph Health System (2021) 11 Cal.5th 995. The Supreme Court discusses Code of Civil Procedure section 425.16, including categorization issues raised in that case.

Item 29. Simpson Strong-Tie Co. v. Gore (2010) 49 Cal.4th 12. The Supreme Court discusses Code of Civil Procedure section 425.17 and its relationship to special motions to strike.

Item 30. Moradi-Shalal v. Fireman’s Fund Ins. Cos. (1988) 46 Cal.3d 287. The Supreme Court discusses private enforcement limitations related to certain Insurance Code unfair-practice provisions in the circumstances presented.

Item 31. Gulf Ins. Co. v. Berger, Kahn, Shafton, Moss, Figler, Simon & Gladstone (2000) 79 Cal.App.4th 114. The Court of Appeal discusses insurer relationships to panel counsel in an agency framework.

Item 32. Le Francois v. Goel (2005) 35 Cal.4th 1094. The Supreme Court discusses inherent authority to reconsider certain interim rulings to correct error.

Item 33. Standard Microsystems Corp. v. Winbond Electronics Corp. (2009) 179 Cal.App.4th 868. The Court of Appeal discusses timing and prerequisites for motions under Code of Civil Procedure section 1008, subdivision (a).

Item 34. California Rules of Court, rule 3.1113 (official text), including subdivision (j) as written.

Item 35. Reedy v. Bussell (2007) 148 Cal.App.4th 1272. The Court of Appeal discusses

1 abuse of discretion and prejudice in the context of late filings and disentitlement arguments.

2 **Item 36.** Kolani v. Gluska (1998) 64 Cal.App.4th 402. The Court of Appeal discusses
3 standards for rulings on supplemental briefing and related discretion.

4 **Item 37.** Ross v. Creel Printing & Publishing Co. (2002) 100 Cal.App.4th 736. The Court
5 of Appeal discusses judicial notice once materials are tendered under the Evidence Code frame-
6 work.

7 **Item 38.** Jay v. Mahaffey (2013) 218 Cal.App.4th 1522. The Court of Appeal discusses
8 anti-SLAPP reply boundaries and enlargement of the moving papers' theory.

9 **Item 39.** Nguyen-Lam v. Cao (2009) 171 Cal.App.4th 858. The Court of Appeal discusses
10 leave to amend after an anti-SLAPP ruling where amendment cures identified deficiencies.

11 **Item 40.** Caldwell v. Taylor (1933) 218 Cal. 471. The Supreme Court discusses equitable
12 considerations in fraud-related set-aside postures.

13 **Item 41.** Pico v. Cohn (1891) 91 Cal. 129. The Supreme Court discusses equitable fraud
14 principles in an older posture.

15 **Item 42.** California Rules of Court, rule 3.1300(d) (official text). The rule addresses timing
16 and court discretion for late papers in the trial court's scheduling framework.

17 **Item 43.** California Rules of Court, rule 3.1324 (official text). The rule addresses leave to
18 amend requirements including statements of additional allegations and supporting declarations.

19 _____
20 **Dated:** May 13, 2026

21 **FRANCISCUS DYLAN ROSARIO**

22 Plaintiff, In Pro Per

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25 Tel: 650.488.7510

26 Email: soltrinox@gmail.com
27 _____

Dated: May 13, 2026

A handwritten signature in blue ink, appearing to read "F. Rosario", with a small circle at the end of the stroke.

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DECLARATION OF COMPLIANCE WITH CALIFORNIA CODES, RULES, AND LOCAL PROCEDURES

Plaintiff declares under penalty of perjury under the laws of the State of California (Code Civ. Proc., § 2015.5) that the statements below are true and correct for this preservation request for judicial notice.

#	Authority	Specific requirement	This filing's compliance	Evidence
1	Evid. Code 451–453	Neutral item descriptions; no disputed-fact notice	Items list black-letter sources only	Items for judicial notice
2	CRC 3.1113	Organized authority list	Limited TOA subset	TOA (limited)